

24NNCV00523 24NNCV00523

County: los-angeles

Division: Civil Law and Motion

Department: P

Hearing date: 2026-08-20

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=PAS%2CP%2C08%2F20%2F2026

Source SHA-256: 99318e36a14822c61f06dcdf335bb843cfc724335aa99eb65457950a37945ca8

Case Number: 24NNCV00523 Hearing Date: August 20, 2026 Dept: P

[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTION TO SET ASIDE AND VACATE DISMISSAL

I. INTRODUCTION

Plaintiffs Alberto Erick Shum Cen, Yan Li, and minor Anson Cen, by and through his guardian ad litem Alberto Erick Shum Cen (collectively, "Plaintiffs"), filed this action against Defendants Boston Lobster Inc. and Li Shou Ma (collectively, "Defendants") on March 27, 2024. Plaintiffs filed the operative First Amended Complaint ("FAC") on February 7, 2025. The action arises from a December 1, 2023, incident in which Anson Cen allegedly suffered severe burns when scalding tea spilled on him at Defendants' restaurant.

The parties settled the action at mediation on June 29, 2026. On July 8, 2026, Plaintiffs filed a Request for Dismissal. On July 28, 2026, Plaintiffs filed the instant motion to set aside and vacate the dismissal pursuant to Code of Civil Procedure section 473, subdivisions (b) and (d).

II. LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (b) provides for either discretionary or mandatory relief from certain prior actions or proceedings in the trial court. (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1124.)

"Under the discretionary relief provision, on a showing of 'mistake, inadvertence, surprise, or excusable neglect,' the court has discretion to allow relief from a 'judgment, dismissal, order, or other proceeding taken against' a party or his or her attorney. Under the mandatory relief provision, on the other hand, upon a showing by attorney declaration of 'mistake, inadvertence, surprise, or neglect,' the court shall vacate any 'resulting default judgment or dismissal entered.'" [Citation.] Applications seeking relief under the mandatory provision of section 473 must be 'accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect.' The mandatory provision further adds that 'whenever relief is granted based on an attorney's affidavit of fault [the court shall] direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.'" (*Ibid.*; Code Civ. Proc., § 473, subd. (b).)

Code of Civil Procedure section 473, subdivision (d) provides that:

The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order. (Code Civ. Proc., § 473(d).)

III. ANALYSIS

Plaintiffs move for an order setting aside and vacating the dismissal entered on July 8, 2026, and reinstating the action for the limited purpose of permitting the Court to consider the Petition for Approval of Compromise of Disputed Claim of a Minor. (Motion, pp. 1-2.) Plaintiffs contend relief is warranted under Code of Civil Procedure section 473, subdivisions (b) and (d), because the dismissal resulted from counsel's mistake and inadvertence. (Motion, pp. 5-7.)

The Court finds that the record supports relief.

First, the motion is timely, having been brought within six months of the July 8, 2026, dismissal. (Deng Decl., ¶ 10; Code Civ. Proc., § 473(b).) There is also no apparent prejudice to Defendants from setting aside the dismissal. Defendants' liability carrier requires Court approval of the minor's compromise before funding the settlement, and vacating the dismissal would permit the parties to complete the settlement they already reached. (Deng Decl., ¶ 12.)

Next, the evidence supports Plaintiffs' contention that the dismissal resulted from counsel's mistake and inadvertence. The parties settled this action at mediation on June 29, 2026, with the understanding that the compromise of minor Plaintiff Anson Cen's claim required Court approval before the settlement could be funded and the action dismissed. (Deng Decl., ¶¶ 3-4.) On July 8, 2026, while executing and returning the settlement documents, Plaintiffs' counsel inadvertently caused a Request for Dismissal to be filed. (Deng Decl., ¶ 6.) Counsel states that the filing was a mistake, that he did not intend to dismiss the action before approval of the minor's compromise, and that the dismissal should not have been filed until after the Court approved the compromise and the settlement was funded. (Ibid.)

Further, On July 10, 2026, defense counsel confirmed that the settlement check could not be issued until the minor's compromise was filed and approved by the Court. (Deng Decl., ¶ 7.) Plaintiffs thereafter filed the Petition for Approval of Compromise of Disputed Claim of a Minor and related documents on July 20, 2026. (Deng Decl., ¶ 8.) The Court denied those requests on July 22, 2026, because the action had already been dismissed. (Deng Decl., ¶ 9; Exh. A.)

Thus, Plaintiffs have demonstrated that the dismissal resulted from counsel's mistake and inadvertence within the meaning of section 473(b). The Court therefore GRANTS Plaintiffs' motion and sets aside the July 8, 2026, dismissal.

IV. ORDER

The Court GRANTS Plaintiffs motion to set aside dismissal.

Plaintiffs are to give notice.

Dated: August 20, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT